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April 22, 2025

COMMITTEE SUBSTITUTE  
FOR ENGROSSED  
HOUSE BILL NO. 1412

By: Johns, Pogemiller, Boles,  
Provenzano, McCane, and  
Archer of the House

and

## Pugh of the Senate

An Act relating to teachers; amending 70 O.S. 2021, Section 6-190, as last amended by Section 1, Chapter 122, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-190), which relates to teacher certification; directing stipends, rather than salary increases, be provided to teachers provided with certain certificates; allowing school districts that receive certain fund allotment amounts to provide certain designation to additional teachers; prohibiting stipends from being included in certain calculations; amending Section 2, Chapter 359, O.S.L. 2022, as amended by Section 2, Chapter 122, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-190.2), which relates to the Teacher Empowerment Revolving Fund; modifying purpose of allocations; providing an effective date; and declaring an emergency.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 70 O.S. 2021, Section 6-190, as last amended by Section 1, Chapter 122, O.S.L. 2024 (70 O.S. Supp. 2024, Section 6-190), is amended to read as follows:

1       Section 6-190. A. The board of education of each school  
2 district shall employ and contract in writing, as required in  
3 Section 6-101 of this title, only with persons certified to teach by  
4 the State Board of Education in accordance with the Oklahoma Teacher  
5 Preparation Act, except as otherwise provided for by Section 6-101  
6 of this title and by other law.

7       B. The Board shall issue a certificate to teach to any person  
8 who:

9       1. Has successfully completed the teacher education program  
10 required by the Commission for Educational Quality and  
11 Accountability;

12       2. Has graduated from an accredited institution of higher  
13 education that has approval or accreditation for teacher education;

14       3. Has met all other requirements as may be established by the  
15 Board;

16       4. Has made the necessary application and paid the competency  
17 examination fee in an amount and as prescribed by the Commission;

18       5. Has successfully completed the competency examination  
19 required in Section 6-187 of this title; and

20       6. Beginning November 1, 2001, has on file with the Board a  
21 current Oklahoma criminal history record from the Oklahoma State  
22 Bureau of Investigation as well as a national criminal history  
23 record check as defined in Section 150.9 of Title 74 of the Oklahoma  
24 Statutes. Upon receipt of the Oklahoma criminal history record, the

1 Board may issue a temporary certificate which shall be effective  
2 until receipt of the national fingerprint-based criminal history  
3 record. The person applying for a certificate shall be responsible  
4 for the cost of the criminal history records.

5 C. The Board shall issue a certificate to teach to any person  
6 who:

7 1. Holds an out-of-state certificate and meets the requirements  
8 set forth in subsection G of this section;

9 2. Holds certification from the National Board for Professional  
10 Teaching Standards;

11 3. Holds an out-of-country certificate and meets the  
12 requirements set forth in subsection F of this section; or

13 4. Has successfully completed a competency examination used in  
14 the majority of other states or comparable customized exam and meets  
15 the requirements set forth in subsection H of this section.

16 D. Beginning July 1, 2004, any person applying for initial  
17 Oklahoma certification shall have on file with the Board a current  
18 Oklahoma criminal history record from the Oklahoma State Bureau of  
19 Investigation as well as a national criminal history record check as  
20 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon  
21 receipt of the Oklahoma criminal history record, the Board may issue  
22 a temporary certificate which shall be effective until receipt of  
23 the national fingerprint-based criminal history record. The person  
24

1 applying for a certificate shall be responsible for the cost of the  
2 criminal history records.

3 E. Any person holding a valid certificate, issued prior to  
4 January 1, 1997, shall be a certified teacher for purposes of the  
5 Oklahoma Teacher Preparation Act, subject to any professional  
6 development requirements prescribed by the Oklahoma Teacher  
7 Preparation Act or by the State Board of Education.

8 F. 1. The Board shall issue a certificate to teach to a person  
9 who holds a valid out-of-country certificate and meets any  
10 requirements established by the Board. The certificate to teach  
11 shall only be for those subject areas and grade levels most closely  
12 aligned to the subject areas and grade levels recognized on the out-  
13 of-country certificate.

14 2. A person who meets the requirements of paragraph 1 of this  
15 subsection shall not be required to take any competency examinations  
16 in those subject areas and grade levels most closely aligned to the  
17 subject areas and grade levels recognized on the out-of-country  
18 certificate.

19 3. A person who meets the requirements of paragraph 1 of this  
20 subsection shall have on file with the Board a current Oklahoma  
21 criminal history record check from the Oklahoma State Bureau of  
22 Investigation as well as a national criminal history record check as  
23 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon  
24 receipt of the Oklahoma criminal history record check, the Board may

1 issue a temporary certificate which shall be effective until receipt  
2 of the national fingerprint-based criminal history record check.

3 The person applying for a certificate shall be responsible for the  
4 cost of the criminal history record checks.

5 4. The Board shall promulgate rules establishing a process by  
6 which out-of-country certificates will be reviewed and evaluated for  
7 purposes of awarding a certificate to teach pursuant to this  
8 subsection.

9 G. 1. The Board shall issue a certificate to teach to a person  
10 who holds a valid out-of-state certificate. The certificate to  
11 teach shall only be for those subject areas and grade levels most  
12 closely aligned to the subject areas and grade levels recognized on  
13 the out-of-state certificate.

14 2. A person who meets the requirements of paragraph 1 of this  
15 subsection shall not be required to take any competency examinations  
16 in those subject areas and grade levels most closely aligned to the  
17 subject areas and grade levels recognized on the out-of-state  
18 certificate.

19 3. A person who meets the requirements of this subsection shall  
20 have on file with the Board a current Oklahoma criminal history  
21 record check from the Oklahoma State Bureau of Investigation as well  
22 as a national criminal history record check as defined in Section  
23 150.9 of Title 74 of the Oklahoma Statutes. Upon receipt of the  
24 Oklahoma criminal history record check, the Board may issue a

1 temporary certificate which shall be effective until receipt of the  
2 national fingerprint-based criminal history record check. The  
3 person applying for a certificate shall be responsible for the cost  
4 of the criminal history record checks.

5 H. 1. The Board shall issue a certificate to teach to a person  
6 who has successfully completed a competency exam used in a majority  
7 of the other states. The certificate to teach shall only be for  
8 those subject areas and grade levels that correspond with a  
9 certification area used in Oklahoma.

10 2. A person who meets the requirements of paragraph 1 of this  
11 subsection shall have on file with the Board a current Oklahoma  
12 criminal history record check from the Oklahoma State Bureau of  
13 Investigation as well as a national criminal history record check as  
14 defined in Section 150.9 of Title 74 of the Oklahoma Statutes. Upon  
15 receipt of the Oklahoma criminal history record check, the Board may  
16 issue a temporary certificate which shall be effective until receipt  
17 of the national fingerprint-based criminal history record check.  
18 The person applying for a certificate shall be responsible for the  
19 cost of the criminal history record checks.

20 I. 1. The Board may establish new levels of teacher  
21 certificates: advanced, lead, and master. Each level shall have a  
22 ~~salary increase requirement~~ stipend paid with state dollars from the  
23 lottery funds as provided in Section 713 of Title 3A of the Oklahoma  
24 Statutes. The advanced certificate shall include a ~~salary increase~~

1 stipend of Three Thousand Dollars (\$3,000.00), the lead certificate  
2 shall include a ~~salary increase~~ stipend of Five Thousand Dollars  
3 (\$5,000.00), and the master certificate shall include a ~~salary~~  
4 ~~increase~~ stipend of Ten Thousand Dollars (\$10,000.00).

5 2. A teacher who works in a school with an enrollment of forty  
6 percent (40%) or more of students who are economically disadvantaged  
7 as defined in Section 18-109.5 of this title or a school district  
8 with an enrollment of fewer than one thousand students shall be paid  
9 a one-time award in addition to the ~~salary increases~~ stipends  
10 provided in paragraph 1 of this subsection:

- 11 a. One Thousand Five Hundred Dollars (\$1,500.00) for an  
12 advanced certificate,
- 13 b. Two Thousand Five Hundred Dollars (\$2,500.00) for a  
14 lead certificate, and
- 15 c. Five Thousand Dollars (\$5,000.00) for a master  
16 certificate.

17 3. School districts may identify and designate the highest  
18 quality teachers for advanced, lead, and master certificates.  
19 Participating districts shall submit designation plans to the State  
20 Department of Education for evaluation and approval. Districts  
21 shall have local control and flexibility in determining how to  
22 evaluate teachers and assign designations, but, at a minimum, the  
23 designation system shall include a teacher observation, out-of-  
24 classroom time, and a student performance component.

- 1           a.   Teacher observation shall be based on the district's  
2               selected Oklahoma Teacher and Leader Effectiveness  
3               Evaluation System (TLE) evaluation tool or an  
4               alternate method of evaluation; provided, the method  
5               is evidenced-based. Alternate methods of evaluation  
6               shall not replace the requirements of Section 6-101.16  
7               of this title.
- 8           b.   Each school district that elects to participate in  
9               assigning advanced, lead, and master teacher  
10              certificates shall include an out-of-classroom  
11              component for its assigned teachers to allow for  
12              professional growth opportunities while staying in the  
13              classroom. How out-of-classroom time is allotted and  
14              managed shall be determined by the school district and  
15              submitted as part of its designation plan to the State  
16              Department of Education for review and approval.
- 17          c.   Student performance measures may be determined by the  
18               district and may include, but shall not be limited to,  
19               pre- and post-tests, summative or formative, and  
20               portfolios. The school district application shall  
21               show evidence of validity and reliability of the  
22               measures.
- 23          d.   No more than ten percent (10%) of each school  
24               district's teachers may be designated as advanced,



1           lead, or master teachers in any given school year.  
2           Districts which receive Title I funds within the top  
3           quartile of individual student allotment amounts may  
4           designate an additional ten percent (10%) of teachers  
5           who are employed at school sites which receive the  
6           Title I funds as advanced, lead, or master teachers.

7           Districts may use additional factors in determining which  
8 teachers are eligible to receive a designation, such as student  
9 surveys, teacher leadership responsibilities, teacher mentorship  
10 responsibilities, family surveys, demonstration of district core  
11 values, teacher peer surveys, and contributions to the broader  
12 school community. ~~No more than ten percent (10%) of each school~~  
13 ~~district's teachers may be designated as an advanced, lead, or~~  
14 ~~master teacher in any given school year.~~

15           4. If a school district chooses to participate in this program,  
16 the state shall provide the ~~increased salary~~ stipend amounts  
17 indicated for advanced, lead, and master certificates in paragraph 1  
18 of this subsection ~~above the base pay.~~

19           5. School districts that designate teachers for advanced, lead,  
20 and master certificates do not have to participate in annual TLE  
21 evaluations for the designated teachers.

22           6. School districts may designate teachers for advanced, lead,  
23 or master certificates two times per year, once prior to the  
24 beginning of the school year, and once prior to the beginning of the

1 second semester. Teachers statewide who receive these designations  
2 shall be placed in professional development cohorts and provided  
3 additional training opportunities from the State Department of  
4 Education.

5 7. After initial approval by the State Department of Education,  
6 the Department shall review and validate each participating school  
7 district's teacher evaluation system biennially.

8 8. The State Department of Education shall annually report the  
9 school districts participating in the program, the number of  
10 advanced, lead, and master certificates awarded, and the total  
11 amount in state funding that was distributed to teachers from the  
12 Teacher Empowerment Revolving Fund created in Section 6-190.2 of  
13 this title.

14 9. The selection criteria; designation of advanced, lead, or  
15 master teachers; and any associated ~~salary increases~~ stipend amounts  
16 shall not be subject to collective bargaining.

17 10. Stipends provided pursuant to this subsection shall not be  
18 included in the calculation of the teacher's salary for purposes of  
19 meeting the district or statutory minimum salary schedule or for  
20 purposes of calculating Teachers' Retirement System of Oklahoma  
21 contributions or benefits.

22 J. The State Board of Education shall adopt rules to implement  
23 a renewal schedule and associated fees for advanced, lead, and  
24 master teaching certificates. The rules shall allow a teacher that

1 no longer meets the requirements of an advanced, lead, or master  
2 teaching certificate to make application for the standard teaching  
3 certificate.

4 K. The terms of the contracts issued to those holding advanced,  
5 lead, and master teaching certificates shall include the following:

6 1. Advanced: an additional five (5) days to be used to  
7 strengthen instructional leadership. A person with an advanced  
8 teaching certificate shall receive an annual ~~salary increase~~ stipend  
9 of Three Thousand Dollars (\$3,000.00) or the district's daily rate  
10 of pay, whichever is higher, in addition to the salary for which the  
11 teacher qualifies pursuant to Section 18-114.15 of this title. This  
12 ~~increase~~ stipend shall be funded by state dollars from the lottery  
13 funds as provided in Section 713 of Title 3A of the Oklahoma  
14 Statutes and shall be paid ~~as regular annual compensation~~ directly  
15 to teachers through school districts;

16 2. Lead: an additional ten (10) days to be used to strengthen  
17 instructional leadership. A person with a lead teaching certificate  
18 shall receive an annual ~~salary increase~~ stipend of Five Thousand  
19 Dollars (\$5,000.00) or the district's daily rate of pay, whichever  
20 is higher, in addition to the salary for which the teacher qualifies  
21 pursuant to Section 18-114.15 of this title. This ~~increase~~ stipend  
22 shall be funded by state dollars from the lottery funds as provided  
23 in Section 713 of Title 3A of the Oklahoma Statutes and shall be  
24

1 paid ~~as regular annual compensation~~ directly to teachers through  
2 school districts; and

3 3. Master: an additional fifteen (15) days to be used to  
4 strengthen leadership. A person with a master teaching certificate  
5 shall receive an annual ~~salary increase~~ stipend of Ten Thousand  
6 Dollars (\$10,000.00) or the district's daily rate of pay, whichever  
7 is higher, in addition to the salary for which the teacher qualifies  
8 pursuant to Section 18-114.15 of this title. This ~~increase~~ stipend  
9 shall be funded by state dollars from the lottery funds as provided  
10 in Section 713 of Title 3A of the Oklahoma Statutes and shall be  
11 paid ~~as regular annual compensation~~ directly to teachers through  
12 school districts.

13 If a person with an advanced, lead, or master teaching  
14 certificate changes school districts during the life of the  
15 certificate, the terms of the contracts required in this subsection  
16 shall be subject to approval by the new employing school district.

17 L. Beginning in the 2022-2023 school year, the Department shall  
18 make the teaching certificates provided for in this section  
19 available for any person who has received a recommendation from his  
20 or her school district and who meets the eligibility criteria as  
21 outlined in each school district's teacher evaluation system  
22 provided for in subsection I of this section.

23 M. The funding necessary for the administration of this section  
24 shall be provided from the Teacher Empowerment Revolving Fund

1 created in Section 6-190.2 of this title. If funding for the  
2 administration of the teaching certificates listed in subsection I  
3 is not available, the Department shall not be required to fulfill  
4 the requirements listed in subsections I, K, and L of this section.

5 N. The State Board of Education shall promulgate rules to  
6 implement the provisions of Section 6-180 et seq. of this title.

7 SECTION 2. AMENDATORY Section 2, Chapter 359, O.S.L.  
8 2022, as amended by Section 2, Chapter 122, O.S.L. 2024 (70 O.S.  
9 Supp. 2024, Section 6-190.2), is amended to read as follows:

10 Section 6-190.2. A. There is hereby created in the State  
11 Treasury a revolving fund for the State Department of Education to  
12 be designated the "Teacher Empowerment Revolving Fund". The  
13 revolving fund shall be a continuing fund, without legislative  
14 appropriation, not subject to fiscal year limitations, and shall be  
15 under the control and management of the State Department of  
16 Education. Expenditures from the Teacher Empowerment Revolving Fund  
17 shall be budgeted and expended as provided for in subsection B of  
18 this section.

19 B. The State Department of Education shall utilize the funds  
20 for the program outlined in Section 6-190 of this title. Funding  
21 shall be allocated to school districts to provide the ~~increased~~  
22 ~~salary~~ stipend amounts indicated for advanced, lead, and master  
23 certificates as provided for in subsection I of Section 6-190 of  
24

1 this title on a first-come, first-served basis until the cash is  
2 exhausted for the school year.

3 SECTION 3. This act shall become effective July 1, 2025.

4 SECTION 4. It being immediately necessary for the preservation  
5 of the public peace, health, or safety, an emergency is hereby  
6 declared to exist, by reason whereof this act shall take effect and  
7 be in full force from and after its passage and approval.

8 COMMITTEE REPORT BY: COMMITTEE ON EDUCATION  
9 April 22, 2025 - DO PASS AS AMENDED BY CS  
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